BEFORE THE PHILADELPHIA BOARD OF ETHICS

J. Shane Creamer, Jr. **Executive Director** **Philadelphia Board of Ethics** 1515 Arch Street, 18th Floor Philadelphia, PA 19102 Petitioner vs. **Ryan Boyer** rboyer@ldcphilly.org Respondent	**Matter No.:** 2510ET25

BRIEF IN SUPPORT OF NOTICE OF ADMINISTRATIVE ENFORCEMENT PROCEEDING

Pursuant to Philadelphia Board of Ethics (the "Board") Regulation No. 2 ("Regulation No. 2"), the Procedures for Administrative Enforcement Proceedings that Supplement Board Regulation No. 2, and the Hearing Officer's December 4, 2025 Briefing Order, the Executive Director submits the following Brief in Support of Notice of Administrative Enforcement Proceeding ("Brief").

I. PROPOSED FINDINGS OF FACT

1. Ryan Boyer ("Boyer" or "Respondent") is currently a member of the Tax Review Board. Exhibit A, 2024 Statement of Financial Interests filed by Ryan Boyer at A1.
2. Respondent held this office in 2025 prior to April 1, 2025. City of Philadelphia Boards & Commissions Public Meetings, *Tax Review Board L&I Hearing (1/16/25)*, WWW.YOUTUBE.COM (Jan. 29, 2025), https://www.youtube.com/watch?v=kUa6LfRkeBU.

3. Respondent filed a Statement of Financial Interests ("City Form")[1] with the Board for calendar year 2024 on August 8, 2025. Exhibit A, 2024 Statement of Financial Interests filed by Ryan Boyer at A1.

II. PROPOSED CONCLUSIONS OF LAW

4. The Ethics Code ("Code") requires certain individuals to file a City Form—disclosing certain financial information about the filer for the preceding calendar year—with the Board. Code § 20-610(1).

5. In relevant part, the Code requires "[m]embers and executive directors of boards and commissions that exercise significant powers of government, as determined by the Board of Ethics by regulation" to file a City Form. Code § 20-610(1)(e).

6. The Board has determined by regulation that members and executive directors of the Tax Review Board must file a City Form. Board Regulation No. 3 ("Regulation No. 3"), ¶ 3.5(y).

7. An individual who is required to file a City Form must do so by May 1 in any year in which they hold office and by May 1 of the year after they leave such office. Code § 20-610(1); Regulation No. 3, ¶ 3.7(a).

8. The failure to timely file a City Form is a violation of Code Section 20-610(1), which is subject to a civil monetary penalty of $1,000. Code §§ 20-612(1), 20-1302.

9. Respondent was required to file a City Form for 2024 by May 1, 2025 because Respondent is a member of the Tax Review Board who held this office in 2025 prior to April 1, 2025.

[1] A Statement of Financial Interests filed with the Board pursuant to Philadelphia Code Section 20-610 is also known as the City Form. *See* Philadelphia Board of Ethics, *Financial Disclosure*, https://www.phila.gov/departments/board-of-ethics/financial-disclosure/ (last visited November 4, 2025).

Proposed Findings of Fact at ¶¶ 1-2; Code § 20-610(1); Regulation No. 3, ¶¶ 3.5(y), 3.7(a)-(b).

10. By filing the City Form on August 8, 2025, 99 days after the May 1, 2025 deadline, Respondent violated the Code. Proposed Findings of Fact at ¶ 3; Code §§ 20-610(1), 20-612(1), 20-1302; Regulation No. 3, ¶ 3.7(a).
11. Respondent's Code violation is subject to a civil monetary penalty of $1,000. Code §§ 20-612(1), 20-1302.

III. ARGUMENT

Respondent was indisputably a member of the Tax Review Board in 2025 prior to April 1, 2025, which obligated Respondent to file a City Form by May 1, 2025. Proposed Findings of Fact at ¶¶ 1-2; Code § 20-610(1); Regulation No. 3, ¶¶ 3.5(y), 3.7(a)-(b). Respondent did not file the City Form with the Board by May 1, 2025. Proposed Findings of Fact at ¶ 3. Accordingly, Respondent violated the Code Section 20-610(1) and is subject to a $1,000 civil monetary penalty. Code §§ 20-610(1), 20-612(1), 20-1302; Regulation No. 3, ¶ 3.7(a).

Date: December 5, 2025

Respectfully submitted,

/s J. Shane Creamer, Jr.
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